and permanently enjoined the Attorney General from collecting their Schedule Bs. *Americans for Prosperity Foundation* v. *Harris*, 182 F. Supp. 3d 1049 (CD Cal. 2016); *Thomas More Law Center* v. *Harris*, 2016 WL 6781090 (CD Cal., Nov. 16, 2016). Applying exacting scrutiny, the District Court held that disclosure of Schedule Bs was not narrowly tailored to the State's interest in investigating charitable misconduct. The court credited testimony from California officials that Schedule Bs were rarely used to audit or investigate charities. And it found that even where Schedule B information was used, that information could be obtained from other sources.

The court also determined that the disclosure regime burdened the associational rights of donors. In both cases, the court found that the petitioners had suffered from threats and harassment in the past, and that donors were likely to face similar retaliation in the future if their affiliations became publicly known. For example, the CEO of the Foundation testified that a technology contractor working at the Foundation's headquarters had posted online that he was "inside the belly of the beast" and "could easily walk into [the CEO's] office and slit his throat." 182 F. Supp. 3d, at 1056. And the Law Center introduced evidence that it had received "threats, harassing calls, intimidating and obscene emails, and even pornographic letters." 2016 WL 6781090, *4.

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The District Court also found that California was unable to ensure the confidentiality of donors' information. During the course of litigation, the Foundation identified nearly 2,000 confidential Schedule Bs that had been inadvertently posted to the Attorney General's website, including dozens that were found the day before trial. One of the Foundation's expert witnesses also discovered that he was able to access hundreds of thousands of confidential documents on the website simply by changing a digit in the URL. The court found after trial that "the amount of careless mistakes

made by the Attorney General's Registry is shocking." 182 F. Supp. 3d, at 1057. And although California subsequently codified a policy prohibiting disclosure, Cal. Code Regs., tit. 11, §310(b)—an effort the District Court described as "commendable"—the court determined that "[d]onors and potential donors would be reasonably justified in a fear of disclosure given such a context" of past breaches. 2016 WL 6781090, *5.

The Ninth Circuit again vacated the District Court's injunctions, and this time reversed the judgments and remanded for entry of judgment in favor of the Attorney General. 903 F. 3d 1000. The court held that the District Court had erred by imposing a narrow tailoring requirement. *Id.*, at 1008–1009. And it reasoned that the disclosure regime satisfied exacting scrutiny because the up-front collection of charities' Schedule Bs promoted investigative efficiency and effectiveness. *Id.*, at 1009–1012. The panel also found that the disclosure of Schedule Bs would not meaningfully burden donors' associational rights, in part because the Attorney General had taken remedial security measures to fix the confidentiality breaches identified at trial. *Id.*, at 1013–1019.

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The Ninth Circuit denied rehearing en banc. *Americans for Prosperity Foundation* v. *Becerra*, 919 F. 3d 1177 (2019). Judge Ikuta dissented, joined by four other judges. In her view, the panel had impermissibly overridden the District Court's factual findings and evaluated the disclosure requirement under too lenient a degree of scrutiny. *Id.*, at 1184–1187.

We granted certiorari. 592 U. S. —— (2021).

II

A

The First Amendment prohibits government from "abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the

Government for a redress of grievances." This Court has "long understood as implicit in the right to engage in activities protected by the First Amendment a corresponding right to associate with others." *Roberts* v. *United States Jaycees*, 468 U. S. 609, 622 (1984). Protected association furthers "a wide variety of political, social, economic, educational, religious, and cultural ends," and "is especially important in preserving political and cultural diversity and in shielding dissident expression from suppression by the majority." *Ibid.* Government infringement of this freedom "can take a number of forms." *Ibid.* We have held, for example, that the freedom of association may be violated where a group is required to take in members it does not want, see *id.*, at 623, where individuals are punished for their political affiliation, see *Elrod* v. *Burns*, 427 U. S. 347, 355 (1976) (plurality opinion), or where members of an organization are denied benefits based on the organization's message, see *Healy* v. *James*, 408 U. S. 169, 181–182 (1972).

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We have also noted that "[i]t is hardly a novel perception that compelled disclosure of affiliation with groups engaged in advocacy may constitute as effective a restraint on freedom of association as [other] forms of governmental action." *NAACP* v. *Alabama ex rel. Patterson*, 357 U. S. 449, 462 (1958). *NAACP* v. *Alabama* involved this chilling effect in its starkest form. The NAACP opened an Alabama office that supported racial integration in higher education and public transportation. *Id.*, at 452. In response, NAACP members were threatened with economic reprisals and violence. *Id.*, at 462. As part of an effort to oust the organization from the State, the Alabama Attorney General sought the group's membership lists. *Id.*, at 452–453. We held that the First Amendment prohibited such compelled disclosure. *Id.*, at 466. We explained that "[e]ffective advocacy of both public and private points of view, particularly controversial ones, is undeniably enhanced by group association," *id.*, at 460, and we noted "the vital relationship between freedom to associate and privacy in one's associa-